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CASE NAME: Law Offices of Payam Y. Poursalimi v.
the Williams Law Group, et al.

CASE NO.: 23SMCV05655

MOTION: Motion
for New Trial

HEARING DATE: 8/7/2026

Legal
Standard

"A motion for new trial is a creature of statute . . ." (Neal v. Montgomery Elevator Co., (1992) 7 Cal. App. 4th 1194, 1198.) A movant must satisfy Code of Civil Procedure ("CCP") sections 657 and 659. Under CCP section 657, a motion for new trial may be granted if there is any:

[¶] 1. Irregularity in the proceedings of the court, jury, or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial. [¶] 2. Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors. [¶] 3. Accident or surprise, which ordinary prudence could not have guarded against. [¶] 4. Newly discovered evidence, material for the

party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial. [¶] 5. Excessive or inadequate damages. [¶] 6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law. [¶] 7. Error in law, occurring at the trial and excepted to by the party making the application.

When ruling on an application

for a new trial, the court sits as an independent trier of fact. (Lane v. Hughes Aircraft Co. (2000) 22 Cal.4th 405, 412.) The court, therefore, has broad discretion to order new trials, limited only by the obligation to state its reasons for granting a new trial and the existence of substantial evidence in the record to support those reasons. (Ibid.) In assessing the need for a new trial, the court must rely on its view of the overall record, taking into account such factors, among others, as the nature and seriousness of the alleged misconduct, the general atmosphere, including the judge's control, of the trial, the likelihood of prejudicing the jury, and the efficacy of objection or admonition under all the circumstances. (Dominguez v. Pantalone (1989) 212 Cal.App.3d 201, 211.)

The party intending to move for

a new trial must file with the clerk and serve upon each adverse party a notice of his intention to move for a new trial, designating the grounds upon which the motion will be made and whether the same will be made upon affidavits or the minutes of the court or both, either (1) "after a decision is rendered and before the entry of judgment"; (2) "within 15 days of the date of mailing notice of entry of judgment by the clerk of the court . . . , or service upon him or her by any party of written notice of entry of judgment, or within 180 days after the entry of judgment, whichever is earliest"; or (3) if another party files the first motion for new trial, "each other party shall have 15 days after the service of that notice upon him or her to file and serve a notice of intention to move for a new trial." (CCP § 659.) These time limits are jurisdictional and cannot be extended or waived by stipulation nor court order. (Marriage of Herr (2009) 174 Cal.App.4th 1463, 1469 [while trial judge characterized order as one "granting reconsideration," ruling effectively granted new trial and was untimely].)

Analysis

Defendants the Williams Law Group ("WLG")

and Andrew Williams move for a new trial. Defendants identify the following

grounds for a new trial: 1. Irregularity in the proceedings of the court (Code Civ. Proc., § 657(1)); 2. Improper orders of the Court (Code Civ. Proc., § 657(1)); 3. Abuse of discretion by the Court (Code Civ. Proc., § 657(1)); 4. Error(s) of the Court (Code Civ. Proc., § 657(1)); 5. Accident or surprise, which ordinary prudence could not have guarded against (Code Civ. Proc., § 657(3)); 6. Newly discovered evidence, material to the Defendant's case, that could not, with reasonable diligence, have been discovered and produced at trial (Code Civ. Proc., § 657(4)); 7. Excessive and/or inadequate damages (Code Civ. Proc., § 657(5)); 8. The evidence was insufficient to justify the verdict (Code Civ. Proc., § 657(6)); 9. The Court's discovery order(s) pertaining to the Defendants and its discovery decisions were against the law (Code Civ. Proc., § 657(6)); 10. The verdict is contrary to law (Code Civ. Proc., § 657(6)); and 11. The Court made error(s) in law at the trial, which were excepted to by the Defendants (Code Civ. Proc., § 657(7)).

Defendants principally challenge

the evidentiary sanctions issued on March 2, 2026. Defendants first argue that the underlying request for production ("RPDs") that led to the sanctions order were only addressed to, and served on, WLG. (Williams Decl., Exs. A-B; CCP § 2031.030(a)(1)-(b) (notably, the body of exhibit B shows that the demand was addressed and served upon Williams individually.) Next, Defendants argue that the sanctions were ordered before the RPD deadline expired. Defendants note that both demands required a response by November 25, 2025. (Williams Decl., Exs. A-B.) Defendants thus conclude that the sanctions were unjustified as to both Defendants.

First, an objective review of the

record leading to the sanctions dispels any notion that the evidentiary sanctions were improper. Defendants were given ample opportunities to comply with their discovery obligations prior to the imposition of evidentiary sanctions. WLG's responses to Plaintiff's first set of RPDs were first raised with the Court at an IDC held on July 24, 2025. Defendants made no appearance at the IDC. Then, the issue was litigated in a motion to compel further responses, heard on August 22, 2025, after notice and an opportunity for briefing and argument. Defendants failed to file any opposition or appear at the hearing. They did not request a continuance of this hearing. Defendants did not raise any of the issues they now raise here. The Court found WLG's objections to be without merit and its substantive responses not to be code-compliant, and ordered its further responses as to the RPDs within 15 days.

WLG did not provide any further responses as ordered, and Plaintiff filed a sanctions motion, arguing that both Defendants were engaging in discovery abuse. This motion concerned a myriad of potential discovery abuse, including WLG's failure to respond and produce pursuant to the RPDs. The motion was eventually heard on February 6, 2026. At that sanctions hearing, the Court found that there were insufficient grounds for terminating sanctions, but gave Defendants one final opportunity to comply with the outstanding RPDs. The Court continued the hearing on the sanctions motion to March 2, 2026, ordering Defendants to provide code-compliant responses to the RPDs within five days of the hearing. The Court warned that it was inclined to issue non-monetary sanctions due to Defendants' willful disobedience with the court's discovery orders concerning the RPDs, including barring both Defendants from presenting any responsive documents to RPDs nos. 1-23. The Court structured the order as such, since imposing evidentiary sanctions only against WLG, and not Williams individually, would be meaningless given the identical interests of Defendants in this suit. Defendants failed to respond as ordered, and further failed to produce any documents with their response, or indicate when those documents would be produced. The Court gave little weight to Defendants' serial excuses. The Court therefore concluded that Defendants engaged in a pattern of bad faith discovery abuse, and that lesser sanctions including monetary sanctions had been ineffective at gaining compliance. The Court accordingly barred Defendants from presenting any responsive documents to RPDs nos. 1-23, but did not bar Defendants from presenting any other evidence.

Shortly following the hearing, Defendants brought a motion for reconsideration and to vacate the sanctions order, arguing they made a series of excusable mistakes (calendaring mistakes and misinterpretations of the court's orders) which led to the entry of the sanctions order. Defendants again did not raise or identify any of the issues they now raise. At the April 16, 2026, hearing, the Court found no excusable mistakes supporting section 473 relief, and no new or different facts supporting reconsideration. Later, on April 23, 2026, Defendants first raised issues with the sanctions via an ex parte motion.

Substantively, Defendants' new objections fail to justify a new trial. The record shows that Williams received the demands, individually and on behalf of WLG. He apparently understood that one set was directed to him individually, and he served a separate response on behalf of himself individually. (Daneshrad Decl., ¶ Ex. 5.) Further, even if the discovery was only served and directed to WLG (and the motion to compel

further was only ordered against WLG), the evidentiary sanctions against both parties were justified by the discovery abuse conducted by both Defendants. Additionally, even if Defendants had until November 2025 to provide an initial response/production to the RPDs per the initial requests, Defendants did respond. Williams individually responded on November 26, 2024. (Ibid.) WLG provided amended responses on February 10, 2025, per the motion to compel further. This response triggered the statutory deadline to move to compel further responses. Plaintiff timely moved for a further response to WLG's amended responses. The sanctions motion stemmed from Defendants' failure to abide by the compel further order, and more directly, the court's February 2026 discovery order. Thus, Defendants' contention concerning their initial response deadline was not until November 2025 does not support reversal of the sanctions order.

Defendants present no newly discovered facts. The new objections were apparent from the face of the initial service of the RPDs in 2024. With reasonable diligence, Defendants could have presented these same arguments prior to the imposition of sanctions. The above record also shows that Defendants never objected to the imposition of sanctions on the grounds now advanced until April 23, 2026, despite multiple opportunities to raise the issues. Defendants' new objections could have, and should have, been raised in the numerous hearings discussed above, including the motion to compel further, motion for sanctions, and the motions for reconsideration/vacation. Defendants cited authority is distinguishable from the instant record. (See *Mink v. Superior Ct.*, (1992) 2 Cal. App. 4th 1338 [attorney's failure to check a calendar in advance of a hearing on a motion for summary adjudication to determine that a statute of limitations had not run qualified as newly discovered evidence].) Thus, there is no newly discovered material evidence which could not have been raised at the appropriate juncture with reasonable diligence.

Defendants

also do not explain how any documentary evidence which Defendants could have presented would have changed the outcome of the trial. The only true issue at trial was the respective value of the parties' legal services in the underlying action. Even without supporting documentary evidence, Defendants presented evidence of all of their legal services. The Court fully considered and credited such testimony, and awarded the fee reflecting Defendants' efforts. Here, Defendants have not cited any documentation which might have changed their fee allocation. Defendants only contend that it should be presumed without evidence that they would have been able to secure a higher fee allocation if permitted to

present documentary evidence. This bare contention does not meet Defendants' burden on a new trial motion. Defendants further reason that they should be entitled to \$3,768.33 more than they were awarded, since that amount was offset from their fee allocation due to the monetary sanctions imposed against Defendants. However, as discussed, the mandatory monetary sanctions were properly granted against WLG and its counsel of record, Williams, pursuant to the motion to compel further order. Defendants do not show that their fee award was improperly offset against the pre-existing sanction award. Thus, the Court cannot conclude that it awarded excessive damages to Plaintiff.

Accordingly, the motion is DENIED.